

Amendment No. 2 to HB1268

Salinas
Signature of Sponsor

AMEND Senate Bill No. 846*

House Bill No. 1268

by deleting subdivisions (30)(F)(i) and (ii) in the amendatory language of SECTION 2 and substituting:

(i) Effective September 1, 2026, there is created in the thirtieth judicial district one (1) additional criminal court to be designated as a violent criminal court and one (1) additional circuit court. The governor shall appoint a person to serve as judge of each court, and each person so appointed shall serve in that capacity until September 1, 2028, or until the person's successor is elected and qualified. At the August 2028 general election, the qualified voters of the thirtieth judicial district shall elect, in accordance with § 16-2-505, one (1) person to serve as judge of the violent criminal court created by this subdivision (30)(F)(i) and one (1) person to serve as judge of the circuit court created by this subdivision (30)(F)(i). Each person so elected at the August 2028 general election shall hold office until September 1, 2030, or until the person's successor is elected and qualified. Thereafter, the judges of the violent criminal court and circuit court shall be elected for a full eight-year term;

(ii) The presiding judge is directed to address caseload backlogs in the criminal courts by transferring cases involving criminal offenses set forth in § 40-35-501(aa), (bb), and (cc) to the violent criminal court and circuit court established under this subdivision (30)(F) for disposition; and